

PRESENT  
Mr. Justice Mustafa Zaman Islam  
And  
Mr. Justice Md. Atabullah

16.01.2024

Mr. SM Badrul Islam, Advocate  
...in person  
Mr. Tushar Kanti Roy, D.A.G with  
Mr. Md. Salim Azad, A.A.G with  
Ms. Anis ul Mawa, A.A.G  
..for the Respondents

Supplementary affidavit do form`  
part of the main application.

The petitioner, an advocate of the Supreme Court of Bangladesh has brought to present an issue of considerable public transport with removal of obstruction from the roads and highways as well as public importance, and significance by filing this Writ Petition under article 102 (2) of the Constitution of Bangladesh. In support of that contention the learned Advocate submits that the petitioner is a practicing Advocate who is a socially conscious public spirited person and is also involved in various social activities. This Writ Petition involves general

public interests with regard to smooth movement and communication and violation of human right guaranteed under article 32 of the Constitution. He submits that the rights of the millions of peoples for their free movement over the passage as guaranteed under article 36 of the Constitution and as such direction may be given for ends of justice.

On going through the grounds set-forth in the Writ Petition thereof, we find prima facie case for issuing ***Rule nisi.***

Let a ***Rule nisi*** be issued calling upon the respondents to show cause as to why the inaction of respondents in completion of BRT Project upon their legal mandates as well as removing hat bazars over the Gazipur-Mymensingh Highway including roads and highways across the country should not be declared to be in violation of laws, against public

interest and as such illegal without lawful authority and is of no legal effect and/or such other or further order or orders passed as to this court may seem fit and proper.

The Rule is made returnable within 4 (four) weeks.

The Respondent no.3 is hereby directed to take all required necessary measure to clean and remove scattered equipments, anomalous garbage, unauthorized vehicle etc from Gazipur 4 point intersection within 01(one) month.

The Respondent nos. 7 and 8 are directed to take necessary steps to remove all Hatbazar and dumping stations/ obstruction as well as standing vehicles, mini vehicles over the Road's and Highways for securing free movements of the peoples from all the Highways in the country within 3 (three) month and to file affidavit-in-compliance thereof before this court within specified time.

The Respondent nos.7 and 8 are also directed to form a High level monitoring committee of 5 (five) members to investigate into the matter for the interest of the people within 3 (three) months and to file affidavit-in-compliance thereof before this court within specified time.

The petitioner is directed to put in requisites for service of notice upon the respondents through registered post and in usual course.

Let this matter be placed in the list for further order on 18.02.2024.